

CITY CONTRACT NO. _____

AGREEMENT

THIS AGREEMENT made and entered into this _____ day of _____, 2011, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming (hereinafter “City” or “Lessor”), and Laramie County School District No. 1, 2800 House Avenue, Cheyenne, Wyoming, (hereinafter “Lessee”).

NOW, THEREFORE, in consideration of the mutual covenants and conditions contained herein, it is agreed as follows:

1. **Description of Premises:** The City leases to the Lessee the following described real property (hereinafter “Premises”).

That portion of the tract of land described in DEED WITHOUT WARRANTY, recorded in Book 1059, Page 391, located southerly of the south right of way of Cosgriff Court extended westerly to the easterly right of way of I-25, and northerly of the existing cul-de-sac at the west end of Talbot Court, but reserving a strip of land, twenty (20) feet in width along, adjacent and parallel to the easterly right of way of I-25, in Pioneer Park, City of Cheyenne, Laramie County, Wyoming, Said parcel containing 1.3 acre more or less. Said parcel being depicted on Exhibit A attached hereto.

2. **Term:** The term of this Agreement shall be for five (5) years beginning on the date of execution of this lease by City and Lessee. It is agreed that the City may terminate this Agreement by providing no less than one (1) year’s written notice to Lessee.

3. **Rent:** The Lessee shall pay as rental for the Premises the sum of Ten Dollars (10.00) per year, which annual rental shall be paid within thirty (30) days after the execution of this Agreement, and within thirty (30) days after each anniversary of the execution of this Agreement.

4. **Permitted Uses:** The Premises shall be used by the Lessee for the purposes of temporary installation, maintenance and use of modular classrooms and related temporary facilities necessary for customary school services and activities. The City reserves the right, upon ten (10) days written notice, to require the Lessee to discontinue any specific use of the Premises other than purposes stated herein.

5. **Insurance.**

a. Commercial General Liability Insurance. The Lessee shall provide coverage against claims for damages for bodily injury, death, and damage to or destruction of property of others, including loss of use thereof, and including products

and completed operations, with minimum limits of One Million Dollars (\$1,000,000.00) per occurrence and Two Million Dollars (\$2,000,000.00) aggregate.

b. The Lessee shall be responsible for securing insurance on personal property, owned by the Lessee and others, which will be located in or on the Premises.

c. The City of Cheyenne shall be named as an **additional insured** by an endorsement on the Lessee's general liability policy for the term of this Agreement.

d. It is understood and agreed that this policy is primary and not contributory. Within thirty (30) days after the execution of this Agreement, the Lessee shall provide to the City insurance certificates attesting to the existence of the insurance coverages required by this Agreement. All insurance certificates **must include** a clause stating that the insurance may not be canceled, amended or allowed to lapse until the expiration of at least thirty (30) days advance written notice to the City. The Lessee shall immediately notify the City of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of any insurance coverage required by this Agreement.

e. The Lessee will report any damage to the property to the City Risk Manager who will, if necessary, file a claim with the property insurance carrier. The Lessee will also advise the City Risk Manager of any liability claim against the Lessee arising from the use of the Premises.

f. The Lessee shall pay all federal, state, county and local taxes assessed against the Premises.

6. **Governmental Immunity:** The City and Lessee expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, § 1-39-101, et seq., with respect to any claims, demands, or causes of action which may be asserted against the party or parties to this Agreement.

7. **Improvements:** The Lessee agrees not to make any improvement, modification or alteration of the Premises without the express knowledge and written consent of the City of Cheyenne. All permanent improvements made to the Premises shall remain with the Premises and become the property of the City at the expiration of this Agreement.

8. **Lessee's Maintenance Responsibilities:** The Lessee agrees to perform all reasonable and necessary maintenance of the premises including, but not limited to, compliance with all provisions of the Cheyenne City Code, state laws, and federal laws which relate to the use of real property, including protection of the environment.

9. **Liens and Encumbrances:** The Lessee agrees not to incur any indebtedness which will, or may become a lien or encumbrance upon the Premises, nor to allow any mechanic, builder, materialman, or other claimant to assert any lien against the Premises. The Lessee further agrees to discharge any such liens or encumbrances as soon as the same shall have been asserted against the Premises and shall indemnify and hold the City harmless from the same.

10. **Surrender of Premises at Conclusion of Lease Term:** At the conclusion of the lease period or termination of this Agreement, the Lessee shall return the Premises to the City in the same condition as received, less reasonable wear and tear. Unless otherwise directed by the City, the District shall, upon termination of this Agreement, remove all temporary improvements, fixtures, equipment, and other personal property placed on the Premises by Lessee.

11. **Assignment:** This Agreement may not be assigned without the prior written consent of the City.

12. **Conformance with Law:** The Lessee agrees to comply with all laws in the performance of this Agreement.

13. **Waiver of Default:** No waiver of default by the Lessee of any of the terms, covenants or conditions hereof to be performed, kept and observed by the Lessee shall be construed as, or operate as, a waiver by the City of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept and observed by the Lessee.

14. **Holding Over:** The Lessee covenants that at the expiration of the period for which the Premises are leased to it, or at the earlier termination of this Agreement, it will quit and surrender the Premises together with fixtures on the property in good state and condition, reasonable wear and tear excepted. Should the Lessee hold over the use of or continue to occupy the Premises after the expiration of the Agreement, such holding over will be as a tenant at sufferance for which use it shall be liable for any and all damages resulting from such tenancy.

15. **Covenant of Quiet Enjoyment:** The City covenants for itself, its successors and assigns that the Lessee, upon payment of the rent and performance of the Lessee's other covenants herein, shall and may peaceably and quietly have, hold and enjoy the demised Premises during the term of this Agreement, provided however, that the City reserves the right to locate a greenway trail in and along the strip of land, twenty feet (20') feet in width along, adjacent to and parallel to the easterly right of way of Interstate 25, as set forth in the legal description above. In the event the City elects to locate a greenway trail in said strip of land, the City shall provide ninety (90) days written notice of its intentions to the District.

16. **Notices:** Any notices required or given hereunder shall be given by first class mail, or telegram, addressed to the respective addresses below, or such other address as may be specified in writing from time to time:

LESSOR

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

LESSEE

Laramie County School District No. 1.
2800 House Avenue
Cheyenne, WY 82001

17. **Eminent Domain:** If the leased property or any part thereof is taken by eminent domain or sold under the threat of the exercise of said power (all of which are herein called "condemnation"), this Agreement shall expire on the date when the leased property shall be so taken, and the rent shall be apportioned as of that date.

18. Other Agreements.

a. Declaration of Governing Law. This Agreement shall be governed by, construed and enforced in accordance with the laws of the State of Wyoming.

b. Parties Have Relationship of Landlord and Tenant- Not Principal-Agent, Partners or Joint Venturers. Nothing contained in this Agreement shall be deemed or construed to create the relationship of principal and agent or of partnership or of a joint venture or of any association whatsoever between Lessor and Lessee, it being expressly understood and agreed that neither the computation of rent nor any other provisions contained in this Agreement nor any act or acts of the parties hereto shall be deemed to create any relationship between Lessor and Lessee other than relationship of landlord and tenant.

c. Prior Representation Incorporated into Agreement - No Representations, Warranties or Promises by Landlord, Agents or Representatives. All negotiations, considerations, representations, and understandings between the parties are incorporated in this Agreement, and the Lessee acknowledges that Lessor, its agents and representatives, have made no representations, warranties or promises with respect to the leased Premises or the surrounding land except as may be expressly set forth herein.

d. Entire Agreement - Modification in Writing, Signed and Delivered by Both Parties. This Agreement contains all of the agreements and representations between the parties. None of the terms of this Agreement shall be waived or modified to any extent, except by a written instrument signed and delivered by both parties.

e. Severability of Invalid or Unenforceable Clause - Remainder of Agreement Enforceable- Clause Applicable to Other Persons and Circumstances. If any clause, phrase, provision or portion of this Agreement or the application thereof to any person or circumstance shall be invalid, or unenforceable under applicable law, such event shall not affect, impair or render invalid or unenforceable the remainder of this Agreement, nor any other clause, phrase, provision or portion hereof, nor shall it affect the application of any clause, phrase, provision or portion hereof to other persons and circumstances.

19. **Non-Discrimination:** All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of race, color, disability, national origin or sex. The parties further assure that they will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause herein.

20. **Americans with Disabilities Act:** The parties agree that they will comply fully with the Americans with Disabilities Act (ADA). If either of the parties or their employees or subcontractors is found in violation of these requirements, this Agreement may be terminated. The Lessee shall be responsible for all such noncompliant action and shall defend, hold harmless and indemnify the City therefrom.

21. **Integration:** This Agreement contains the entire understanding of the parties.

There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties hereto have executed this instrument on the day,
month and year first above written.

CITY OF CHEYENNE, WYOMING

Richard L. Kaysen, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

Laramie County School District No. 1

President of the Board of Trustees

(SEAL)
Attest:

Clerk of the Board of Trustees of Laramie County
School District No. 1